LONG BEACH STATE FOUNDATION
GENERAL PROVISIONS FOR SERVICES
ACQUISITIONS
12/10/2014

1) Definitions

Throughout this document, the following words have the following meanings.

a) "LBS Foundation" shall mean Long Beach State Foundation.
b) "Contractor" shall mean the person or entity providing services to "Long Beach State Foundation."
c) "The Parties" shall mean "Long Beach State Foundation" and "Contractor."
d) "University" shall mean California State University, Long Beach.

2) Commencement of Work

Contractor shall not commence work under the Contract until Contractor has received a fully executed Contract and been given written approval to proceed. Any work performed by Contractor prior to the date of approval shall be considered as having been performed at Contractor's own risk and as a volunteer.

3) Entire Agreement, Modification & Integration

This Contract sets forth the entire agreement between the parties with respect to the subject matter hereof and shall govern the respective duties and obligations of each party. No modification, alteration or variation of the Contract shall be valid unless made in writing and signed by the parties hereto, and no oral understanding or agreement not incorporated in writing in the Contract shall be binding on any of the parties hereto.

4) Severability

Contractor and LBS Foundation agree that if any provision of this Contract is found to be illegal or unenforceable, such term or provision shall be deemed stricken and the remainder of the Contract shall remain in full force and effect. Either party having knowledge of such term or provision shall promptly inform the other of its presumed non-applicability of such provision. Should the illegal or unenforceable provision be a material or essential term of the Contract, the Contract shall be terminated in a manner commensurate with the interests of both parties, to the maximum extent reasonable.

5) Independent Status

Contractor and its employees and agents, and subcontractors, in the performance of this Contract, shall act in an independent capacity and not as officers, employees or agents of LBS Foundation or the State of California. While Contractor may be required by this Contract to carry Workers' Compensation Insurance, in no event shall Contractor and its employees and agents by entitled to unemployment or Workers' compensation benefits from LBS Foundation.

6) Governing Law

To the extent not inconsistent with applicable federal law, this Contract shall be construed in accordance with and governed by the laws of the State of California.

7) Contractor's Power and Authority

Contractor warrants it has full power and authority to enter into this Contract and will hold LBS Foundation harmless from and against any loss, cost, liability, and expense (including reasonable attorney fees) arising out of any breach of this warranty. Further, Contractor shall not enter into any arrangement, agreement or contract with any third party that might abridge any rights of the LBS Foundation under this Contract.

8) Assignments

Contractor shall not assign this Contract, either in whole or in part, without LBS Foundation's written consent, which will not be unreasonably withheld.

9) Personnel

Contractor shall give its personal attention to the performance of the Contract and shall make every effort consistent with sound business practices to honor LBS Foundation's requests regarding Contractor's assignment of its employees. However, Contractor maintains the sole right to determine the assignment of its employees in order to keep all phases of work under its control. If an employee of Contractor is unable to perform due to illness, resignation or other factors beyond Contractor's control, Contractor shall use its best effort to provide suitable substitute personnel.

10) Waiver of Rights

Any action or inaction by LBS Foundation or the failure of LBS Foundation on any occasion to enforce any right or provision of this Contract shall not be a waiver by LBS Foundation of its rights hereunder and shall not prevent LBS Foundation from enforcing such provision or right on any future occasion. LBS Foundation's rights and remedies provided in this Contract shall not be exclusive and are in addition to any other rights and remedies provided by law.

11) Time

Time is of the essence in the performance of this Contract.

12) Cancellation

49er Foundation has the right to cancel this Contract at any time and without future financial obligation upon thirty (30) days written notice

to Contractor.

13) Termination for Default

LBS Foundation may terminate the Contract and be relieved of the payment of any consideration to Contractor should Contractor fail to perform the covenants herein contained at the time and in the manner herein provided. In the event of such termination, the LBS Foundation may proceed with the work in any manner deemed proper by the LBS Foundation. The cost to the LBS Foundation shall be deducted from any sum due the Contractor under the Contract, and the balance, if any, shall be paid the Contractor upon demand.

14) Rights and Remedies for Default

a) In the event any Deliverables furnished or services provided by Contractor in the performance of this Contract should fail to conform to the requirements herein, or to the sample submitted by Contractor, LBS Foundation may reject the same, and it shall thereupon become Contractor's duty to forthwith reclaim and remove all nonconforming deliverables and correct the performance of services, without expense to the LBS Foundation, and to immediately replace all such rejected items with others conforming to the specifications or samples. Should Contractor fail, neglect, or refuse to do so, LBS Foundation shall thereupon have the right, but not the obligation, to purchase in the open market, in lieu thereof, a corresponding quantity of any such items and to deduct the cost of such cover from any moneys due or that may thereafter become due to Contractor.

b) In the event Contractor fails to make prompt delivery of any item as specified in the Contract, the same conditions as to LBS Foundation's right, but not obligation, to purchase in the open market and receive reimbursement from Contractor, as set forth in (a), above shall apply.

c) If the LBS Foundation terminates this Contract, either in whole or in part, for Contractor's default or breach, Contractor shall compensate LBS Foundation, in addition to any other remedy LBS Foundation may have available to it, for any loss or damage sustained and cost incurred by the LBS Foundation in procuring any items that Contractor agreed to supply.

d) LBS Foundation's rights and remedies provided above shall not be exclusive and shall be in addition to any other rights and remedies provided by law, equity or this Contract.

15) Warranty

Contractor warrants that (i) Deliverables and/or services furnished hereunder will conform to the requirements of this Contract (including, without limitation, all descriptions, specifications, and drawings identified in the Statement of Work, if any), and (ii) The deliverables will be free from defects in materials and workmanship. Where the parties have agreed to design specifications in the Statement of Work directly or by reference, Contractor warrants the deliverables shall provide all functionality required thereby.

16) Safety and Accident Prevention

In performing work under this Contract on LBS Foundation premises, Contractor shall conform to all specific safety requirements contained in this Contract or as required by law or regulation. Contractor shall take all additional precautions as the LBS Foundation may reasonably require for safety and accident prevention purposes. Contractor's violation of such rules and requirements, unless promptly corrected, shall constitute a material breach of this Contract.

17) Insurance Requirements

The Contractor shall not commence Work until it has obtained all the insurance required in this Contract, and such insurance has been approved by the LBS Foundation.

a) Policies and Coverage.

i) The Contractor shall obtain and maintain the following policies and coverage:

(1) Comprehensive or Commercial Form General Liability Insurance, on an occurrence basis, covering Work done or to be done by or on behalf of the Contractor and providing insurance for bodily injury, personal injury, property damage, and contractual liability. The aggregate limit shall apply separatelyto the Work.

(2) Business Automobile Liability Insurance on an occurrence basis, covering owned, hired, and non-owned automobiles used by or on behalf of the Contractor and providing insurance for bodily injury, property damage, and contractual liability. Such insurance shall include coverage for uninsured and underinsured motorists

(3) Workers' Compensation including Employers Liability Insurance as required by law.

ii) The Contractor also may be required to obtain and maintain the following policies and coverage:

(1) Environmental Impairment Liability Insurance should the Work involve hazardous materials, such as asbestos, lead, fuel storage tanks, and PCBs.

(2) Other Insurance by agreement between LBS Foundation and the Contractor.

b) Verification of Coverage.

The Contractor shall submit original certificates of insurance and endorsements to the policies of insurance required by the Contract to LBS Foundation as evidence of the insurance coverage. Renewal certifications and endorsements shall be timely filed by the Contractor for all coverage until the Work is accepted as complete pursuant to Article 8.01, Acceptance. LBS Foundation reserves the right to require the Contractor to furnish LBS Foundation complete, certified copies of all required insurance policies.

c) Insurance Provisions.

Nothing in these insurance provisions shall be deemed to alter the indemnification provisions in Article 4.07. The insurance policies shall contain, or be endorsed to contain, the following provisions.

i) For the general and automobile liability policies LBS Foundation, the State of California, the Trustees of the California State University, the University, their officers, employees, representatives, volunteers, and agents are to be covered as additional insureds.

ii) For any claims related to the Work, the Contractor's insurance coverage shall be primary insurance as respects the State of California, LBS Foundation, the Trustees of the California State University, the University, their officers, employees, representatives, volunteers, and agents. Any insurance or self-insurance maintained by LBS Foundation, the State of California, the Trustees of the California State University, the University, their officers, employees, representatives, volunteers, and agents shall be in excess of the Contractor's insurance and shall not contribute with it.

iii) Each insurance policy required by this Article shall state that coverage shall not be canceled by either the Contractor or the insurance carrier, except after thirty (30) Days prior written notice by certified mail, return receipt requested, has been given to LBS Foundation.

iv) LBS Foundation, the State of California, the Trustees of the California State University, the University, their officers, employees, representatives, volunteers, and agents shall not by reason of their inclusion as additional insureds incur liability to the insurance carriers for payment of premiums for such insurance.

d) Amount of Insurance.

i) For all projects, the insurance furnished by Contractor under this Article shall provide coverage in amounts not less than the following, unless a different amount is stated in the Supplementary General Conditions:

(1) Comprehensive or Commercial Form General Liability Insurance--Limits of Liability: $2,000,000 General Aggregate and $1,000,000 Each Occurrence--combined single limit for bodily injury and property damage.

(2) Business Automobile Liability Insurance-Limits of Liability: $1,000,000 Each Accident-- combined single limit for bodily injury and property damage to include uninsured and underinsured motorist coverage.

(3) Workers' Compensation limits as required by law with Employers Liability limits of $1,000,000.

ii) For projects involving hazardous materials, the Contractor shall provide additional coverage in amounts not less than the following, unless a different amount is stated in the Supplementary General Conditions:

(1) Environmental Impairment (pollution) Liability Insurance-Limits of Liability: $10,000,000 General Aggregate and $5,000,000 Each Occurrence-- combined single limit for bodily injury and property damage, including cleanup costs.

(2) In addition to the coverage described in 4.06-d (1) (b), Business Automobile Liability Insurance, the Contractor shall obtain for hazardous material transporter services:

(a) MCS-90 endorsement

(b) Sudden & Accidental Pollution endorsement--Limits of Liability*: $2,000,000 Each Occurrence and $2,000,000 General Aggregate.

*A higher limit on the MCS-90 endorsement required by law must be matched by the Sudden & Accidental Pollution Insurance. With 49er Foundation's approval, the Contractor may delegate the responsibility to provide this additional coverage, as described in this Article 4.06-d (2) (b) above, to its hazardous materials subcontractor. When the Contractor returns its signed project construction phase agreement to LBS Foundation, the Contractor shall also provide LBS Foundation with a letter stating that it is requiring its hazardous materials subcontractor to provide this additional coverage, if applicable. The Contractor shall affirm in this letter that the hazardous materials subcontractor's certificate of insurance shall also adhere to all of the requirements in Article 4.06-b: Verification of Coverage and 4.06-c: Insurance Provisions. Further, this letter will provide that the subcontractor's certificate of insurance will be provided to LBS Foundation as soon as the Contractor fully executes its subcontract with the hazardous materials subcontractor, or within 30 Days of the Notice to Proceed, whichever is less.

e) Acceptability of Insurers.

Insurers shall be licensed by the State of California to transact insurance and shall hold a current A.M. Best's rating of A:VII, or shall be a carrier otherwise acceptable to the University.

f) Subcontractor's Insurance.

Contractor shall ensure that its subcontractors are covered by insurance of the types required by this Article, and that the amount of insurance for each subcontractor is appropriate for that subcontractor's Work. Contractor shall not allow any subcontractor to commence Work on its subcontract until the insurance has been obtained. Only the Contractor and its hazardous materials subcontractor(s) shall have the coverage for projects involving hazardous materials as required in Article 4.06-d, Amounts of Insurance, subdivision (2).

g) Miscellaneous:

i) Any deductible under any policy of insurance required in this Article shall be Contractor's liability.

ii) Acceptance of certificates of insurance by LBS Foundation shall not limit the Contractor's liability under the Contract.

iii) In the event the Contractor does not comply with these insurance requirements, LBS Foundation may, at its option, provide insurance coverage to protect LBS Foundation. The cost of the insurance shall be paid by the Contractor and, if prompt payment is not received, may be deducted from Contract sums otherwise due the Contractor.

iv) If LBS Foundation is damaged by the failure of Contractor to provide or maintain the required insurance, the Contractor shall pay LBS Foundation for all such damages.

v) The Contractor's obligations to obtain and maintain all required insurance are non-delegable duties under this Contract.

(c) **General Indemnity**

Contractor shall indemnify, defend, and hold harmless LBS Foundation, the State of California, the Trustees of the California State University, University, and their respective board members, officers, agents, volunteers and employees from any and all claims and losses accruing or resulting to any other person, firm or corporation furnishing or supplying work, service, materials or supplies in connection with the performance of this Contract, and from any and all claims and losses accruing or resulting to any person, firm or corporation related to, arising out of or resulting from Contractor's performance of this Contract.

(d) **Invoices**

Invoices shall be submitted, in arrears, to the address stipulated in the Contract. The Contract number must be included on the invoice. Final

invoice shall be marked as such.

a) In the event that additional services are required, the Contractor shall submit invoices in accordance with provisions herein.

b) For work of a continuing nature, the Contractor shall submit invoices in arrears, upon completion of each phase. Contractor shall be reimbursed for travel, subsistence and business expenses necessary for the performance of services pursuant to the Contract in accordance with LBS Foundation policy.

c) Unless otherwise specified, the LBS Foundation shall pay properly submitted invoices not more than 45 days after
   i) The performance completion date of services; or
   ii) Receipt of an undisputed invoice, whichever is later. Late payment penalties shall not apply to this Contract.

d) The consideration to be paid Contractor, as described within the Contract, shall be in full compensation for all of Contractor's expenses incurred in the performance hereof, including travel and per diem, unless otherwise expressly so provided.

20) Document Referencing

All correspondence, invoices, bills of lading, shipping memos, packages, etc., must show the Contract number. If factory shipment, the factory must be advised to comply. Invoices not properly identified with the Contract number and Contractor identification number may be returned to Contractor and may cause delay in payment**.**

21) Use of Data

Contractor shall not utilize any non-public LBS Foundation information it may receive by reason of this Contract, for pecuniary gain not contemplated by this Contract, regardless whether Contractor is or is not under contract at the time such gain is realized. LBS Foundation specific information contained in the report, survey, or other product developed by Contractor pursuant to this Contract is the property of LBS Foundation, and shall not be used in any manner by Contractor unless authorized in writing by LBS Foundation.

22) Confidentiality of Data

a) Contractor acknowledges the privacy rights of individuals to their personal information that are expressed in the Information Practices Act (California Civil Code Section 1798 et seq.) and in California Constitution Article 1, Section 1. Contractor shall maintain the privacy of personal information and protected data as confidential information. Contractor shall not use, disclose, or release confidential information contained in LBS Foundation records without full compliance with applicable state and federal privacy laws, and this Contract. Contractor further acknowledges and agrees to comply with Federal privacy laws, such as the Gramm-Leach-Bliley Act (Title 15, United States Code, Sections 6801(b) and 6805(b)(2)) applicable to financial transactions, and the Family Educational Rights and Privacy Act (Title 20, United States Code, Section 1232g) applicable to student education records and information from student education records. Contractor shall maintain the privacy of confidential information and shall be financially responsible for any notifications to affected persons (after prompt consultation with LBS Foundation) whose personal information is disclosed by any security breach relating to confidential information resulting from Contractor's or its personnel's acts or omissions. Further, If so requested by LBS Foundation, Contractor shall be administratively responsible for providing such notification in the most expedient time possible consistent with the methods prescribed in California Civil Code 1798.29g and 1798.82g.

b) Contractor further agrees that all financial, statistical, personal, technical and other data and information relating to LBS Foundation 's operation designated "confidential" by LBS Foundation, and not otherwise subject to disclosure under the California Public Records Act, and made available to Contractor to perform this Contract or which become available to Contractor while performing this Contract, shall be protected by Contractor using the same level of care it takes to protect its own information of a similar nature, but in no event less than reasonable care. If required by a court of competent jurisdiction or an appropriate administrative body with legal authority to order the disclosure of confidential information or protected data, Contractor will notify LBS Foundation in writing prior to any such disclosure to give LBS Foundation an opportunity to oppose any such disclosure. Prior to any disclosure of confidential information as required by legal process, Contractor shall:
   i) Notify LBS Foundation of any actual or threatened legal compulsion of disclosure, and any actual legal obligation of disclosure, immediately upon becoming so obligated; and
   ii) Contractor shall cooperate with any litigation or investigation proceedings concerning protected data loss or other breach of Contractor's obligations under this Contract. Any access, transmission, or storage of protected data outside the United States must be approved in writing by LBS Foundation in advance. Contractor's failure to comply with any provision of this Section shall constitute a material breach of the Contract.

23) Patent, Copyright, and Trade Secret Indemnity

a) Contractor shall indemnify, defend, and hold harmless LBS Foundation, the State of California, the Trustees of the California State University, University, and their respective officers, agents, and employees (collectively referred to as LBS Foundation), from any and all third party claims, costs (including without limitation reasonable attorneys' fees), and losses for infringement or violation of any Intellectual Property Right, domestic or foreign, by any product or service provided hereunder. With respect to claims arising from computer Hardware or Software manufactured by a third party and sold by Contractor as a reseller, Contractor will pass through to LBS Foundation, in addition to the foregoing provision, such indemnity rights as it receives from such third party ("Third Party Obligation") and will cooperate in enforcing them; provided that if the third party manufacturer fails to honor the Third Party Obligation, Contractor will provide LBS Foundation with indemnity protection.
   i) LBS Foundation will notify Contractor of such claim in writing and tender its defense within a reasonable time; and
   ii) Contractor will control the defense of any action on such claim and all negotiations for its settlement or compromise, except when substantial principles of government or public law are involved, when litigation might create precedent affecting future LBS Foundation operations or liability, or when involvement of the LBS Foundation is otherwise mandated by law. In such case no settlement shall be entered into on behalf of LBS Foundation without LBS Foundation's written approval.

b) Contractor may be required to furnish LBS Foundation a bond against any and all loss, damage, costs, expenses, claims and liability for patent, copyright and trade secret infringement.

c) Should the Deliverables or Software, or the operation thereof, become, or in the Contactor's opinion are likely to become, the subject of a claim of infringement or violation of a Intellectual Property Right, whether domestic or foreign, LBS Foundation shall permit Contractor at its option and expense either to procure for LBS Foundation the right to continue using the Deliverables or Software or to replace or modify the same so they become non-infringing, provided they comply with Contract and performance requirements and/or expectations. If neither option can reasonably practicable or if the use of such Deliverables or Software by LBS Foundation shall be prevented by injunction, Contractor agrees to take back such Deliverables or Software and use its best effort to assist LBS Foundation in procuring substitute Deliverables or Software at Contractors cost and expense. If, in the sole opinion of LBS Foundation, the return of such infringing Deliverables or Software makes the retention of other Deliverables or Software acquired from Contractor under this Contract impracticable, LBS Foundation shall then have the option of terminating this Contract, or applicable portions thereof, without penalty or termination charge. Contractor agrees to take back such Deliverables or Software and refund any sums LBS Foundation paid Contractor less any reasonable amount for use or damage.

d) Contractor certifies it has appropriate systems and controls in place to ensure State funds will not be used in the performance of this Contract for the acquisition, operation or maintenance of computer Software in violation of copyright laws.

24) Rights in Work Product

All inventions, discoveries, intellectual property, technical communications and records originated or prepared by Contractor pursuant to this Contract, including papers, reports, charts, computer programs, and other Documentation or improvements thereto, and including Contractor's administrative communications and records relating to this Contract (collectively, the "Work Product"), shall be Contractor's exclusive property. The provisions of this section may be revised in a Statement of Work. The provisions of this sub-section a) may be revised in a Statement of Work. However, all finished product or deliverables required under this contract shall be the exclusive property of the LBS Foundation and may be used at LBS Foundation's discretion.

25) Dispute

Any dispute arising under or resulting from this Contract that is not resolved within a reasonable time by authorized representatives of Contractor and LBS Foundation shall be brought to the attention of Contractor's Chief Operating Officer (or designee) and 49er Foundation's Chief Operating Officer (or designee) for resolution. The Parties must participate in this high level informal dispute resolution process in good faith prior to initiating any legal action. If this informal dispute resolution process is unsuccessful, the parties may pursue all remedies consistent with this Contract. Despite an unresolved dispute, Contractor shall continue without delay in performing its responsibilities under this Contract. Contractor shall accurately and adequately document all service it has performed under this Contract.

26) Endorsement

Nothing contained in this Contract shall be construed as conferring on any party, any right to use the other party's name as an endorsement of product/service or to advertise, promote or otherwise market any product or service without the prior written consent of the other party. Furthermore nothing in this Contract shall be construed as endorsement of any commercial product or service by the LBS Foundation, its officers or employees.

27) Covenant Against Gratuities

Contractor shall warrant that no gratuities (in the form of entertainment, gifts, or otherwise) were offered or given by Contractor, or any agent or representative of Contractor, to any officer or employee of LBS Foundation with a view toward securing the Contract or securing favorable treatment with respect to any determinations concerning the performance of the Contract. For breach or violation of this warranty,LBS Foundation shall have the right to terminate the Contract, either in whole or in part, and any loss or damage sustained by 49er Foundation in procuring on the open market any items that Contractor agreed to supply shall be borne and paid for solely by Contractor.LBS Foundation's rights and remedies provided in this clause shall not be exclusive and are in addition to any other rights and remedies provided by law, equity or under the Contract

28) Nondiscrimination

a) During the performance of this Contract, Contractor and its subcontractors shall not unlawfully discriminate, harass or allow harassment, against any employee or applicant for employment because of sex, sexual orientation, race, color, ancestry, religious creed, national origin, disability (including HIV and AIDS), medical condition, age, marital status, and denial of family care leave. Contractor and subcontractors shall insure that the evaluation and treatment of their employees and applicants for employment are free from such discrimination and harassment.

b) Contractor and subcontractors shall comply with the provisions of the Fair Employment and Housing Act (Government Code, Section 12990 et seq.) and the applicable regulations promulgated thereunder (California Code of Regulations, Title 2, Section 7285.0 et seq.). The applicable regulations of the Fair Employment and Housing Commission implementing Government Code Section 12990 (a f), set forth in Chapter 5 of Division 4 of Title 2 of the California Code of Regulations are incorporated into this Contract by reference and made a part hereof as if set forth in full. Contractor and its subcontractors shall give written notice of their obligations under this clause to labor organizations with which they have a collective bargaining or other agreement.

c) Contractor shall include the nondiscrimination and compliance provisions of this clause in all subcontracts to perform work under the Contract.

29) Drug-Free Workplace Certification

Contractor certifies that Contractor shall comply with the requirements of the Drug-Free Workplace Act of 1990 and shall provide a drug-

free workplace by taking the following actions:

a) Publish a statement notifying employees that unlawful manufacture, distribution, dispensation, possession, or use of a controlled substance is prohibited and specifying actions to be taken against employees for violations

b) Establish a Drug-Free Awareness Program to inform employees about all of the following:
   i) The dangers of drug abuse in the workplace;
   ii) The person's or organization's policy of maintaining a drug-free workplace;
   iii) Any available counseling, rehabilitation and employee assistance programs; and, (iv) penalties that may be imposed upon employees for drug abuse violations.

c) Provide that every employee who works on the proposed or resulting Contract:
   i) Will receive a copy of the company's drug-free policy statement; and,
   ii) Will agree to abide by the terms of the company's statement as a condition of employment on the Contract. Note: Authority Cited: Government Code Section 8350-8357.

30) Recycled Content Certification

To the extent that services involve the supply of post-consumer materials (see below) Contractor shall certify in writing the minimum, if not exact, percentage of post-consumer material, as defined in Public Contract Code Section 12200, in products, materials, goods, or supplies offered or sold to LBS Foundation regardless whether the product meets the requirements of Section 12209. With respect to printer or duplication cartridges that comply with the requirements of Section 12156(e), the certification required by this subdivision shall specify that the cartridges so comply (PCC 12205).

31) Child Support Compliance Act

For any contract in excess of $100,000, Contractor acknowledges in accordance with Public Contract Code Section 7110, that:

a) Contractor recognizes the importance of child and family support obligations and shall fully comply with all applicable state and federal laws relating to child and family support enforcement, including, but not limited to, disclosure of information and compliance with earnings assignment orders, as provided in Chapter 8 (commencing with Section 5200) of Part 5 of Division 9 of the Family Code; and;

b) Contractor, to the best of its knowledge, is fully complying with the earnings assignment orders of all employees and is providing the names of all new employees to the New Hire Registry maintained by the California Employment Development Department

32) Americans with Disabilities Act (ADA)

Contractor warrants that it complies with California and federal disabilities laws and regulations. (Americans with Disabilities Act of 1990, 42 U.S.C. 12101et seq). Contractor hereby warrants the products or services it will provide under this Contract comply with the accessibility requirements of Section 508 of the Rehabilitation Act of 1973, as amended (29 U.S.C. 794d), and its implementing regulations set forth at Title 36, Code of Federal Regulations, Part 1194. Contractor agrees to promptly respond to and resolve any complaint regarding accessibility of its products or services. Contractor further agrees to indemnify and hold harmless LBS Foundation from any claims arising out of Contractor's failure to comply with the aforesaid requirements. Failure to comply with these requirements shall constitute a material breach of this Contract.

33) Contractor's Staff

Contractor warrants that its staff assigned to performing work under this Contract is legally able to perform such duties in the country where the work is being performed.

34) Debarment and Suspension

By accepting a contract with the LBS Foundation, Contractor certifies neither it nor its principals or its subcontractors are presently debarred, suspended, proposed for debarment, declared ineligible or voluntarily excluded from participation in this transaction by any federal department or agency (2 Code Federal Regulations[CFR] 180.220, in accordance with the Office of Management and Budget guidelines at 2 CFR 180 that implement Executive Orders 12549 (3 CFR Part 1986 Comp., p. 189) and 12689 (3 CFR Part 1989 Comp., p. 235)).